

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

RESPONDENTS' MOTION FOR CONFIDENTIAL TREATMENT

Respondents Amazon.com Services LLC (“Amazon”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”) respectfully move for confidential treatment of the confidential, non-public version of certain portions of the Respondents’ Motion to Dismiss and Attachments thereto, pursuant to Rule 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.5(b).

Good cause exists for the confidential treatment of the above information as Attachments A-C are a service contract and related agreements between the parties the contain sensitive commercial information that were the result of confidential business negotiations between the parties. Attachment E is a Request for Arbitration filed with the Shanghai International Arbitration Center whose rules provide for confidentiality as agreed or ordered.

Respondents believe that the portions of these exhibits that they cite in the Motion to Dismiss can and should be undesignated and made public, but since the documents are issue are

agreements with CUL and the Request filed by CUL, Respondents wish to obtain CUL's consent before doing so.

Pursuant to Rule 502.5(a)(2)(ii), within three business days Respondents will file a public version of the Motion to Dismiss and Attachments, redacted to remove the confidential information that the parties seek to protect as commercially-sensitive information that should not be publicly available. If CUL agrees that all or some of the cited information need not be designated confidential, Respondents will file revised confidential versions of the Motion and Attachments removing additional redactions.

In the interim, Respondents therefore request confidential treatment of the following:

- 1) Attachment A, the Main Transportation Agreement
- 2) Attachment B, the Nondisclosure Agreement
- 3) Attachment C, the Work Order
- 4) Attachment E, the Request for Arbitration

Respondents also request confidential treatment for now of the following portions of the Motion to Dismiss that cite or quote these provisions:

Page 4, fn 4.

Page 4 last line to page 5, line 2.

Page 5 line 5 to page 5, line 22.

Page 6 lines 3-4.

Pursuant to Rule 502.5(a), and the Initial Order in this case, Respondents have provided to Chief Judge Wirth the confidential versions of the Respondents' Motion to Dismiss and the Attachments thereto, with the confidential portions shown highlighted in yellow.

WHEREFORE, Respondents respectfully request that the confidential version of the Respondents' Motion to Dismiss and the Attachments thereto be designated confidential as marked, and that a version with those confidential portions redacted, or with any reduction in those redactions agreed to by the parties, be placed on the docket as the public version of this filing when provided by Respondents to the Commission within three days.

Respectfully submitted,

_____/ s_ John Longstreth ____
Michael F. Scanlon
John Longstreth
Christiana K. Goff
K&L GATES LLP
1601 K Street, N.W.
Washington, DC 20006
(202) 778-9000
(202) 778-9100 (fax)
michael.scanlon@klgates.com
john.longstreth@klgates.com
christi.goff@klgates.com

Counsel for Respondents

March 26, 2025

CERTIFICATE OF SERVICE

I certify that on this 26th day of March, 2025 the aforesaid motion has been filed electronically with the Secretary, with a copy to judges@fmc.gov and to the following parties of record, as provided by the Initial Order in this proceeding.

Vincent J. Foley
HOLLAND & KNIGHT LLP
787 7th Street
New York, NY 10019
(212) 513-3357
vincent.foley@hklaw.com
Counsel to Complainant

_____/ s_ / John Longstreth_____
John Longstreth